

		27, 32.) But those are merely conclusory assertions lacking factual specificity. Where a pleading shows on its face that a claim would otherwise be time-barred, the burden is on the plaintiff to state specific facts to show delayed discovery: conclusory allegations will not withstand demurrer. (<i>Carrillo v. County of Santa Clara</i> (2023) 89 Cal.App.5th 227, 234.) The FAC does not meet that standard here. The FAC fails to articulate what the specific defect is, and when and how that was discovered by Plaintiff. The Demurrer as to COA 4 is SUSTAINED on this ground. For COA 5, Defendant’s argument under the economic loss rule (the “ELR”) fails here. <i>Rattagan</i> did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 does address such claims in this context. After <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. <i>Dhital</i> thus controls here. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (Id. at 843.) The Demurrer, to the extent it is based on the ELR, is OVERRULED. However, the Demurrer as to COA 5 is SUSTAINED for lack of adequate specificity. Plaintiffs vaguely allege that “Plaintiffs purchased the Subject Vehicle equipped with HYUNDAI’s defective 6-speed transmission,” which “can result in” various problems, but fail to allege what specific problems their vehicle experienced, and when. (FAC ¶¶ 64-66.) Generic claims of defects, without more, will not suffice to state the claim, as “[t]he very existence of a warranty presupposes that some defects may occur.” (<i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345.) Greater specificity as to this specific vehicle and the basis for the fraud claim is required. The Demurrer is SUSTAINED on COA 5 on this ground. For COAs 4 and 5, Plaintiffs are granted 20 days leave to amend. However, continued leave to amend should not be presumed: Plaintiffs should ensure that any further amendment fully articulates the factual basis for each claim, including the basis for their tolling claim. In light of the foregoing, the Motion to Strike is MOOT. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Defendant is to give notice of these rulings.
12	Rhodes vs. Hartford Insurance Group Inc.	A) Demurrer The demurrer filed by defendants Hartford Insurance Group Inc. and Trumbull Insurance Company (“Defendants” together) against the First Amended Complaint (“FAC”) filed by pro per plaintiffs Emerson Rhodes and Nancy Rhodes (“Plaintiffs” together) is SUSTAINED, with 20 days leave to amend.